

IT Act 2000

Information Technology Act, 2000

Information Technology (IT) Act, 2000

User Query :

Yesterday I received a WhatsApp message saying that my bank KYC would expire that night. The sender used the bank's logo and sent me a link. I entered my customer ID, password and OTP on the page. Within a few minutes, ₹85,000 was transferred from my account through UPI and net banking. I later found out that the message and website were fake. What legal provisions may apply to this incident?

Job Id. :

qwen3-30b/Scenario 1/Information Technology (IT) Act, 2000

Prepared by :

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Date :

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AI-Powered Legal Intelligence Platform

APPLICABLE SECTIONS

Section 66C

— Punishment for identity theft

The victim's password/OTP or another unique identification feature appears to have been fraudulently used.

Section 66D

— Punishment for cheating by personation by using computer resource

A fake bank identity, WhatsApp message and fake website were used to deceive the victim for financial gain.

Section 43

— Penalty and compensation for damage to computer, computer system, etc.

Relevant if the offender accessed or manipulated the victim's account/computer resource without permission.

Section 66

— Computer related offences

Relevant if an act covered by **section 43** was done dishonestly or fraudulently.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1 The strongest IT Act provisions are sections 66C and 66D. **Section 66C** concerns fraudulent or dishonest use of another person's password or other unique identification feature. **Section 66D** addresses cheating by personation through a communication device or computer resource. Sections 43 and 66 depend on proof of an unauthorised computer-resource act beyond the social-engineering step.

✓ STRENGTHS & RIGHTS

- 1 The facts expressly mention a fake bank identity, electronic communication, password/OTP capture and a resulting monetary transfer.

✗ RISKS & OBLIGATIONS

- 1 Electronic-evidence admissibility is governed principally by the BSA. Do not assume separate bank/body-corporate data-security liability without evidence of negligent security.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Preserve the WhatsApp message, URL, device records, bank/UPI transaction records and complaint acknowledgements.
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